

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX**

-----X
DAVIAN SHEPPARD,

Plaintiff

- against -

**THE CITY OF NEW YORK,
P.O. RYAN BRACCONERI (SHIELD #5015)**

Defendants.

-----X

TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
September 10, 2021



MARTINDALE & ASSOCIATES, PLLC
By: Conway C. Martindale II
Attorneys for Plaintiff
295 Madison Avenue, 12th Floor
New York, New York 10017
(212)405-2233

Defendant's Address:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

P.O. RYAN BRACCONERI (SHIELD #5015)
52nd PRECINCT
3016 Webster Avenue
Bronx, NY 10467

**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY**

DAVIAN SHEPPARD

Plaintiff,

Index No.

Verified Complaint

- against -

**THE CITY OF NEW YORK,
P.O. RYAN BRACCONERI (SHIELD #5015)**

Defendant.

Plaintiff DAVIAN SHEPPARD, by his attorneys MARTINDALE & ASSOCIATES, PLLC, by CONWAY C. MARTINDALE II, principal, complaining of the Defendant, respectfully shows to this Court and alleges the following upon information and belief:

PARTIES

1. At all times relevant herein, Defendant THE CITY OF NEW YORK (hereinafter "CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
2. Upon information and belief, all New York Police Department (hereinafter "NYPD") officers mentioned herein, including P.O. Ryan Bracconeri (hereinafter "BRACCONERI") were, at the time of the occurrence, police officers of Defendant CITY, and at all times herein were acting in such capacity as the agents, servants, and employees of the defendant CITY.

3. At all times relevant herein, Plaintiff Davian Sheppard is a citizen of the United States and a resident of Bronx County in the City and State of New York.

PROCEDURAL POSTURE

4. Within 90 days after the Supreme Court dismissal of the criminal case stemming from the underlying incident, which occurred at approximately 2:45am on March 10, 2018, in and around 2407 Grand Avenue, Bronx, New York, Plaintiff served a Notice of Claim in writing sworn to on his behalf upon the Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant CITY of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.
5. At least thirty days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety days after the happening of the event upon which the claims are based.
6. A 50-H hearing has been held.
7. The Plaintiff has duly complied with all conditions precedent to the commencement of this action.

FACTS

8. Paragraphs 1-7 are incorporated by reference as fully set forth herein.

9. In the early morning of March 10, 2018, in the vicinity of Aqueduct Park in the County of the Bronx, SHEPPARD was with a group of friends about to head home.
10. While standing in the park with the group of friends, an unmarked, dark colored sedan, drove past the group, made a U-Turn and came back around to pull up alongside the sidewalk where SHEPPARD and his friends were standing.
11. The dark colored sedan's occupants included BRACCONERI and two other unidentified NYPD officers.
12. Once alongside the group, BRACCONERI and the other unidentified NYPD officers began shouting from the sedan, and taunting the group, asking them if they belonged to a gang or had any weapons on them.
13. Not wanting to be further taunted, the group, including SHEPPARD, began walking up Aqueduct Avenue away from the park.
14. The dark colored sedan began to slowly drive behind the group, until BRACCONERI jumped out of the sedan and began running towards the group.
15. Out of fear, the group, including SHEPPARD, began running away from BRACCONERI.
16. SHEPPARD eventually split up from the group and ran east towards Grand Avenue, where he stopped running and put his hands against the wall, surrendering to BRACCONERI who was giving chase.
17. Once BRACCONERI caught up to SHEPPARD, he slammed SHEPPARD to the ground, causing a laceration to SHEPPARD's mouth and a contusion to his forehead.

18. The two other unidentified NYPD officers caught up to SHEPPARD and BRACCONERI and one of them placed his knee in SHEPPARD's back as SHEPPARD was on the ground being handcuffed.
19. SHEPPARD was picked up, put in a police vehicle and taken to the 52nd Precinct..
20. SHEPPARD was in a holding cell inside the 52nd precinct for approximately 8 hours before being transported in handcuffs to Bronx Central Booking.
21. At Central Booking, SHEPPARD met his Legal Aid attorney who informed him he was being arraigned on felony weapons possession charges.
22. BRACCONERI alleged SHEPPARD possessed a gun on the evening in question and threw it before him and the other NYPD officers caught up to SHEPPARD.
23. At the arraignment, the presiding judge, set bail in an amount SHEPPARD nor his family could afford. As a result, he was transported to Vernon C. Bain Correctional facility (hereinafter referred to as "VCBC") in the Bronx.
24. SHEPPARD remained in VCBC for the next 15 days until he family was able to post the bail to release him.
25. SHEPPARD maintained his innocence and fought the aforementioned felony charges throughout the duration of the case.
26. SHEPPARD made approximately 27 court appearances (19 in person and 8 virtual) before the matter was ultimately dismissed on April 26, 2021.
27. Throughout the pendency of the underlying criminal case, no DNA from SHEPPARD was ever found on the gun he allegedly possessed.

28. The only “evidence” against SHEPPARD throughout the entirety of the felony gun possession charges against him was the word of BRACCONERI, stating he witnessed SHEPPARD throw the gun.
29. Upon information and belief, BRACCONERI has had several substantiated CCRB and Internal Affairs Bureau complaints and lawsuits lodged against him.

FIRST CAUSE OF ACTION: FALSE ARREST

30. Paragraphs 1-29 are incorporated by reference as fully set forth herein
31. BRACCONERI arrested SHEPPARD intentionally, and SHEPPARD at all times was aware he was being arrested and did not consent to being arrested.
32. As a result of being arrested by BRACCONERI and the NYPD officers, SHEPPARD suffered psychological injuries, including emotional distress.

SECOND CAUSE OF ACTION: FALSE IMPRISONMENT

33. Paragraphs 1-132 are incorporated by reference as though fully set forth herein.
34. The officers who arrested the Plaintiff, as described in paragraphs 8-29, intended to confine him. SHEPPARD was conscious of his confinement and did not consent to it. Moreover, the confinement was not privileged or authorized by any warrant, order, or other legal right.

THIRD CAUSE OF ACTION: ABUSE OF PROCESS

35. Paragraphs 1-34 are incorporated by reference as though fully set forth herein.

36. In arresting SHEPPARD as described in paragraphs 8-29, the arresting NYPD officers, including BRACCONERI were motivated by an ulterior purpose to do harm, without justification or economic or social excuse.
37. In arresting SHEPPARD as described in paragraphs 8-29, the arresting NYPD officers, including BRACCONERI, sought either a detriment to SHEPPARD or a collateral advantage to themselves that is outside of the legitimate ends of making an arrest.
38. As a result of defendants' abuse of process, SHEPPARD sustained multiple injuries, including, but not limited to loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

FOURTH CAUSE OF ACTION: MALICIOUS PROSECUTION

39. Paragraphs 1-38 are incorporated by reference as though fully set forth herein.
40. In arresting SHEPPARD as described in paragraphs 8-29, the arresting NYPD officers, including BRACCONERI, acted with malice and without probable cause.
41. As a result of being maliciously prosecuted by the arresting NYPD officers, including BRACCONERI, SHEPPARD sustained multiple injuries, including, but not limited to loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

FIFTH CAUSE OF ACTION: ASSAULT

42. Paragraphs 1-41 are incorporated by reference as though fully set forth herein.

43. Immediately before BRACCONERI and the other NYPD officers arrested SHEPPARD as described in paragraphs 8-29, the officers intentionally placed SHEPPARD in apprehension of imminent harmful or offensive contact without SHEPPARD's consent.

SIXTH CAUSE OF ACTION: BATTERY

44. Paragraphs 1-43 are incorporated by reference as though fully set forth herein.
45. BRACCONERI and the other NYPD officers who arrested the SHEPPARD, as described in paragraphs 8-29, wrongfully touched, grabbed, handcuffed and seized the SHEPPARD in an excessive manner, subjecting SHEPPARD to harmful and offensive bodily contact. BRACCONERI and the other NYPD officers lacked legal cause to grab, handcuff, seize or touch SHEPPARD, nor did SHEPPARD consent to the illegal touching, nor was the touching privileged by law.

SEVENTH CAUSE OF ACTION: 42 U.S.C. 1983 and 1988

46. Paragraphs 1-45 are incorporated by reference as though fully set forth herein.
47. Upon information and belief, BRACCONERI and the other NYPD officers who illegally arrested and battered SHEPPARD were at all times relevant duly appointed and acting officers of the City of New York Police Department.
48. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

49. SHEPPARD is and at all times relevant herein a citizen of the United States and resident of Bronx County in the State of New York. He brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.
50. The Defendant CITY OF NEW YORK is a municipality duly incorporated under the laws of the State of New York.
51. On or about March 10, 2018, as described in paragraphs 8-29, armed officers of the NYPD, while effectuating the seizure of SHEPPARD, searched, seized, assaulted, and battered him, and grabbed SHEPPARD's person, without a court authorized arrest or search warrant. The officers seized the person of SHEPPARD during the arrest process in an unlawful and excessive manner. SHEPPARD was falsely arrested and maliciously prosecuted without the police officers possessing probable cause to do so.
52. The above actions of the arresting officers caused the Plaintiff to be deprived of the following rights under the United States Constitution:
 - (a) Freedom from assault to his person,
 - (b) Freedom from battery to his person,
 - (c) Freedom from illegal search and seizure,
 - (d) Freedom from false arrest,
 - (e) Freedom from malicious prosecution,
 - (f) Freedom from the use of excessive force during the arrest process.
53. The arresting officers, including BRACCONERI, subjected SHEPPARD to such deprivations, either in a malicious or reckless disregard of SHEPPARD's rights or

with deliberate indifference to those rights under the Fourth and Fourteenth Amendments of the United States Constitution.

54. The direct and proximate result of the officers' acts are that SHEPPARD has suffered severe and permanent physical and psychological injuries, including but not limited to a contusion to his forehead and lacerations about his mouth and face. SHEPPARD was forced to endure pain and suffering to his detriment.

EIGHTH CAUSE OF ACTION: NEGLIGENCE

55. Paragraphs 1-54 are incorporated by reference as though fully set forth herein.
56. At all times hereinafter mentioned, the aforesaid false arrest, false imprisonment, abuse of process, malicious prosecution, assault, and battery were caused solely by the negligence of Defendant CITY, its agents, servants and/or employees.
57. As a result of the negligence by Defendant CITY, the Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

NINTH CAUSE OF ACTION: NEGLIGENT SUPERVISION

58. Paragraphs 1-57 are incorporated by reference as though fully set forth herein.
59. Defendant CITY has grossly failed to train and properly supervise its police officers regarding the law of arrest, search and seizure, particularly when its police officers lack a valid arrest or search warrant and where an individual, such as the Plaintiff in the instant case, has not committed a crime and has not resisted arrest.

60. Defendant CITY was negligent by failing to implement a policy within its police department instructing police officers not to arrest individuals such as the Plaintiff, SHEPPARD, unless there is a court authorized warrant or probable cause. Defendant CITY was further negligent by failing to implement a policy within its police department instructing police officers to use reasonable force when an individual resists arrest and to not use force when an individual does not resist arrest.

61. Defendant CITY is negligent due to its failure to implement a policy with its police department or actively enforce the law, if any of the following is lacking:

- (a) Probable cause must be present before individuals such as the Plaintiff herein can be arrested.
- (b) Force cannot be used against an individual who does not physically resist arrest.
- (c) An individual who sustains physical injury at the hands of the police should receive prompt medical attention.

62. The foregoing acts, omissions and systematic failures are customs and policies of Defendant CITY which caused its police officers to falsely arrest, maliciously prosecute, illegally search and seize, and assault and batter SHEPPARD.

TENTH CAUSE OF ACTION: NEGLIGENT HIRING

63. Paragraphs 1-62 are incorporated by reference as though fully set forth herein.

64. Defendant CITY was negligent because prior to and at the time of the acts complained of herein, due to the prior history of the police officers mentioned herein, the CITY knew or should have known of the bad disposition of said police officers or had knowledge of facts that would have put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the CITY and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals, conduct illegal searches, or use excessive force during the arrest process.

WHEREFORE, Plaintiff DAVIAN SHEPPARD demands judgment against the Defendant in the sum of \$10,000,000, together with the costs and disbursements of this action as well as any other additional relief this Court deems just and proper.

Dated: New York, New York

September 10, 2021

Yours, etc.,

MARTINDALE & ASSOCIATES, PLLC

By: Conway C. Martindale II
Attorneys for Plaintiff
295 Madison Avenue, 12th Floor
New York, NY 10017
(212)405-2233

VERIFICATION

The undersigned, the Plaintiff in this action, affirms under the penalties of perjury:

That deponent is the plaintiff in the within action; that deponent has read the foregoing **VERIFIED SUMMONS AND COMPLAINT** and knows the contents thereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters, deponent believes those to be true.

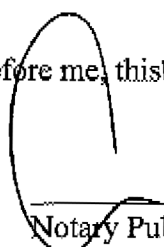
The grounds for deponent's belief as to all matters not stated upon his knowledge are investigations which his attorney has made or has caused to be made concerning the subject matter of this action, and statements of parties or witnesses herein.

Dated: New York, New York
 September 10, 2021

DocuSigned by:

 DAVIAN SHEPPARD

Subscribed and sworn to before me, this 5 th day of September 2021


 Notary Public

CONWAY C MARTINDALE II
 NOTARY PUBLIC, STATE OF NEW YORK
 Registration No. 02MA6383802
 Qualified in New York County
 My Commission Expires: 11/26/22

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX**

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Plaintiff,

-against-

**THE CITY OF NEW YORK
P.O. RYAN BRACCONERI (SHIELD #5015)**

Defendant.

SUMMONS & COMPLAINT

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**TO: CORPORATION COUNSEL OF THE
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